

		Plaintiff timely filed the instant motion on February 26, 2026, one week after the February 19, 2026, Dismissal (ROA 19) was entered. (<i>Younessi v. Woolf</i> (2016) 244 Cal.App.4th 1137, 1147 [a motion to set aside default or dismissal based on attorney fault “is timely if filed within six months of the entry of the default judgment or dismissal”].) Plaintiff’s counsel, Shaunt Oozoonian, declares that he missed the Case Management Conference and the hearing for the Order to Show Cause re: Dismissal (for Failure to Appear at the Case Management Conference) due to calendaring errors and neglect for failing to check the Register of Actions. (Shaunt Oozoonian Decl. ¶¶ 13-19.) Plaintiff’s counsel’s mistake, inadvertence, surprise and/or neglect led to the dismissal of the instant action. There is no contention or evidence that Plaintiff’s failure to abide by the Court’s orders and rules was not Attorney Oozoonian’s fault and no prejudice has been argued or identified. The dismissal ordered on February 19, 2026, is set aside.
4.	2024-1420864 Goldsworthy vs. FCA US, LLC	Plaintiff Gaelyn Goldsworthy’s motion for attorneys’ fees is granted. Plaintiff is awarded \$162,491.08 in reasonable attorneys’ fees, costs, and expenses, against Defendant FCA US, LLC. <u>Merits</u> Civil Code section 1794, subdivision (d) provides: “If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney’s fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.” Defendant does not dispute that Plaintiff is the prevailing party under the Song-Beverly Act, as reflected in their settlement agreement. Plaintiff’s right to seek an award of attorneys’ fees and costs is a term of Defendant’s Offer to Compromise, which was accepted. (See ROA 166.) To recover attorney’s fees, a prevailing party bears the burden of demonstrating that the fees were: (1) allowable; (2) reasonably necessary to the conduct of the litigation; and (3) reasonable in amount. (<i>Doppes v. Bentley Motors, Inc.</i> (2009) 174 Cal.App.4th 967, 998.) The lodestar method is applicable to calculating attorney’s fees under the Song-Beverly Consumer Warranty Act. (<i>Id.</i> at p. 997.) An experienced trial judge is the best judge of the value of professional services rendered in his or her court. (<i>Ibid.</i>) The trial court’s analysis “begins with a touchstone or lodestar figure, based on the ‘careful compilation of the time spent and

reasonable hourly compensation of each attorney ... involved in the presentation of the case.” (*Christian Research Institute v. Alnor* (2008) 165 Cal.App.4th 1315, 1321, citing *Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1131–1132.) “The reasonable hourly rate is that prevailing in the community for similar work.” (*PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095 [citation omitted].) “In setting a reasonable rate, the court may consider various factors beyond the applicable legal community, such as the attorney’s skill and experience, the nature of the work performed, the relevant area of expertise, and the attorney’s customary billing rates. (*Hoglund v. Sierra Nevada Memorial-Miners Hospital* (2024) 102 Cal.App.5th 56, 82, citing *Flannery v. California Highway Patrol* (1998) 61 Cal.App.4th 629, 632–633.)

To determine reasonable attorney’s fees, the court should consider the nature of the litigation, its difficulty, the amount involved, the skill required and employed in handling the matter, the attention given, the success of the attorney’s efforts, the intricacies and importance of the litigation, the labor and necessity for skilled legal training and ability in trying the cause, and the time consumed. (*Church of Scientology v. Wollersheim* (1996) 42 Cal.App.4th 628, 659.) As to the reasonableness of the hours, “trial courts must carefully review attorney documentation of hours expended; ‘padding’ in the form of inefficient or duplicative efforts is not subject to compensation.” (*Ketchum v. Moses, supra*, 24 Cal.4th at 1132.) “In determining a fee’s reasonableness, the court may also consider whether the motion itself is reasonable, both in terms of (1) the amount of fees requested and (2) the credibility of the supporting evidence.” (*Guillory v. Hill* (2019) 36 Cal.App.5th 802, 811.) The court may make a downward adjustment if the billing entries are vague, “blockbilled,” or unnecessary. (*569 East County Boulevard LLC v. Backcountry Against the Dump, Inc.* (2016) 6 Cal.App.5th 426, 441.)

Here, the Court determines that the hourly rates of Plaintiff’s attorneys, which range from \$200 to \$550 for associates, and \$750 for a partner, are reasonable. The Court declines to reduce the rate for all associates to \$200, per Plaintiff’s request, as such a reduction is not warranted.

However, with respect to the reasonableness of the hours, the Court agrees with Defendant, in part, that the time entries reflect padding, duplication, inefficiency, and other inappropriate billing. The time spent on the fee motion was particularly questionable. Having reviewed the entries attached as Exhibit L to the Jason Brower Declaration, the Court finds the fees should be reduced by

		\$157,390; and, that Plaintiff reasonably incurred \$162,491.08 in attorneys' fees. The Court declines to award a multiplier. The party seeking a fee enhancement bears the burden of showing why an enhancement is appropriate. (<i>Ketchum v. Moses, supra</i>, 24 Cal.4th at 1138.) The Court is not persuaded that Plaintiff's requested enhancement is warranted. In sum, Court grants the motion and awards \$158,165, in reasonable attorneys' fees, and \$4,326.08, in costs and expenses, for a total award of \$162,491.08. Plaintiff shall give notice of the ruling.
6.	2025-1517503 Debdeb vs. Fair Trade Real Estate, Inc.	Defendants Fair Trade Real Estate, Inc.'s, Donald "Dek" Bake's, David Durant's, and Dennis Durant II's special motion to strike Plaintiffs' First Amended Complaint ("FAC") pursuant to Code Civ. Proc., § 425.16 is granted. Defendants' evidentiary objections to the declaration of Ehab Debdeb are sustained as to Nos. 1, 4, 8-29, 33-4, 37-39, 41-43, 46-41, 53, and 54, and overruled as to Nos. 2, 3, 5, 6, 7, 30, 31, 32, 35, 36, 40, 44, 45, and 52. Defendants' objections to the declaration of Nathan Hurd are sustained as to Nos. 2, 4, and 6-10 and overruled as to Nos. 1, 3, and 5. The Court additionally sustains Defendants' objection to the declaration of Bryan Lazarski filed on 6/9/26. This was due with Plaintiffs' opposition documents to be filed on 6/4/26. Counsel's only excuse for the late declaration is that he was in arbitration when it was due. Plaintiffs were aware of the motion since 2/24/26 when it was filed and served. The Court does not find counsel's conduct to be excusable, given the nature of litigation and likelihood that attorneys are often handling multiple different matters throughout the year at the same time. Anti-SLAPP motions are evaluated through a two-step process. Initially, the moving defendant bears the burden of establishing that the challenged allegations or claims "aris[e] from" protected activity in which the defendant has engaged. (Code Civ. Proc., § 426.15(e) [defining protected activity]; <i>Simpson Strong-Tie Co., Inc. v. Gore</i> (2010) 49 Cal.4th 12, 21; <i>Equilon Enterprises v. Consumer Cause, Inc.</i> (2002) 29 Cal.4th 53, 66–67.) If the defendant carries its burden, the plaintiff must then demonstrate its claims have at least